Instructions and Guide to GeBIZ Trading Partners

Thank you for participating in this Invitation to Quote. Please read the materials carefully before submitting your quotes in GeBIZ.

There are 5 parts to this set of guide:

A. Instructions To Suppliers
B. Quotation Conditions of Contract
C. List of contact and guide on how to quote in GeBIZ
D. e-Invoicing

A. INSTRUCTIONS TO SUPPLIERS IN SUBMITTING THE QUOTATION Please read these instructions carefully before you proceed with the quotation. These standard conditions and instructions apply unless specified otherwise in the quotation specifications.

1 **Compliance with Instructions** The Supplier is responsible to ensure that its submissions (i.e. attachments and price submission in GeBIZ) are accurate and consistent. Quotations will be accepted only if submitted according to the instructions attached to the Invitation to Quote.

a. **Amendment of ITQ item description and quantity**
Please do not amend the item descriptions and quantity as indicated in the ITQ. If you would like to provide more details to your quote, please include them as a separate attachment in your response.

b. **Quantity of items**
Please take note of the "**Quantity**" that is specified in the ITQ before providing your unit price.

c. **Trade-In (only if applicable)**
Please quote the price of the purchased item **without** any trade-in value. You may indicate the value of the trade-in item at "**Supplier Remarks**" or enclose your **attachment** for us.

2 **Validity Period** Quotations submitted shall remain valid for acceptance within the Validity Period specified in the quotation and during such extension of the period as may afterwards separately be agreed to in writing by the Supplier at the request of Ngee Ann Polytechnic.

3 **Amendments to Quotation** If there is a mistake or change in the quotation submitted, the Supplier shall submit a fresh bid in GeBIZ and officially inform the Polytechnic (via email or letter) before the closing date. No quotations may be amended after the closing date prescribed in the Invitation to Quote. Incomplete, inaccurate and inconsistent submissions may be considered invalid.

4 **Compliance with Technical Requirements** The Supplier shall provide explicit responses of compliance or non-compliance with any other technical requirements enclosed in this Invitation to Quote. In the event of any non-compliance with the technical requirements, the Supplier shall satisfy Ngee Ann Polytechnic (by providing a certification from the manufacturer of the item offered or a copy of the relevant extract from any reputable publication citing clearly its title and edition) that the form, fit and function of the items offered are equivalent to the Goods required and that they are interchangeable. Where the Supplier fails to satisfy Ngee Ann Polytechnic in the manner above, the quotation is liable to be rejected.

5 **Acceptance of Quotation**
(a) Ngee Ann Polytechnic is under no obligation to accept the lowest or any quotation. Ngee Ann Polytechnic normally does not enter into correspondence with any Supplier regarding the reasons for non-acceptance of a quotation.
(b) The issue by Ngee Ann Polytechnic of a Purchase Order accepting the quotation or part of the quotation shall create a binding Contract on the part of the Supplier to supply to Ngee Ann Polytechnic the Goods and/or Services offered in the quotation. The Contract shall be governed by the Conditions of Contract. The Purchase

Order will be sent to the successful Supplier via GeBIZ. Ngee Ann Polytechnic may at its discretion require the Supplier to sign a written agreement.

6 Authority's Clarifications of the Supplier's Quotation While Ngee Ann Polytechnic is not obliged to seek clarifications with the suppliers on inconsistent or incomplete submissions, in the event of any such requests, the Supplier shall provide full and comprehensive responses within three (3) days of notification.

7 The Goods and Services Tax (GST) The Supplier shall not include in the rates and prices proposed in his quotation, the Singapore Goods and Services Tax (GST) chargeable for the supply of Goods or Services required in the Invitation to Quote (ITQ). All rates and prices quoted shall be exclusive of the said GST chargeable on the supply of the said Goods and Services.

8 Freight and Charges

(a) Local agents/suppliers will be liable for all charges associated with goods supplied to Ngee Ann Polytechnic unless otherwise agreed.

(b) Where customs duty is payable on any of the items offered the full amount of such duty, including uplift and hand handling charges, if any, must be included and shown separately and distinctly from the basic price. The successful supplier may be called upon to produce proof of payment of customs duty.

9 Supplier's Track Record The supplier is to submit a list of current / relevant customer's contacts upon the request of Ngee Ann Polytechnic. These contacts would be used for soliciting feedback on the Supplier's performance.

10 Payment The successful Supplier(s), who is/are registered with Singapore's Accounting & Corporate Regulatory Authority (ACRA), shall submit invoices electronically online via the Vendors@Gov portal (www.vendors.gov.sg). The successful Supplier(s) shall register with Vendors@Gov to create a vendor account. The Polytechnic will use the bank account details and email address registered with Vendors@Gov for payment and issuance of e-remittance advice. Payment will be made via GIRO. The successful Supplier(s) shall update any changes in the vendor details within Vendors@Gov. For assistance, please visit the Vendors@Gov main page – https://www.vendors.gov.sg.

B. QUOTATION CONDITIONS OF CONTRACT

Should your offer be accepted, the Terms and Conditions as set out in this Section and the terms and conditions in the GeBIZ Terms and Conditions shall govern the Contract between the Authority and your company.

In this Conditions, unless the context otherwise requires:

(a) "Authority" means Ngee Ann Polytechnic and includes any officer authorised by the Authority to act on its behalf.

(b) "Contract" includes ITQ Message, the Contractor's Quote Message or offer (submitted through GeBIZ), these Conditions of Contract, the specifications and samples, Letter of Acceptance, Order Message or any Orders issued by the Authority to the Contractor for the supply of the Goods and/or performance of Services.

(c) "Contract Price" means the price exclusive of the Singapore Goods and Services Tax payable to the Contractor for the full and proper performance by the Contractor of his part of the Contract as determined under the provisions of the Contract (*refer to GeBIZ Specification Form, Part C – Price Schedule*) and in law.

(d) "Contractor" means the successful supplier who has been awarded the Contract by the Authority.

(e) "Goods" means all goods, including parts or units thereof, which the Contractor is required to supply under the Contract.

(f) "Services" means the work which the Contractor is required to perform under the Contract.

2. SCOPE OF CONTRACT

2.1 The Contractor shall carry out and complete the supply of all items of Goods and perform Services in accordance with the Contract. Unless otherwise stated in the Contract, all Goods shall be new and unused.

3. DELIVERY

3.1 The Contractor shall deliver the Goods and perform the Services by the Delivery/Performance Date and in the manner specified in the Contract. The Contractor shall obtain a receipt therefore from the Authority. The issue of such receipt shall in no way relieve the Contractor from his responsibility for replacing defective or damaged Goods or for rectifying deficient Services under Clause 4 hereof.

4. WARRANTY

4.1 The Warranty Period shall commence on the date of receipt of the Goods and on the date of acceptance of the Services in Singapore. The length of the Warranty Period shall be ***(refer to GeBIZ Specification Form for details)***.

4.2 Where during the Warranty Period, any Good(s) is found to be:

(a) Defective in design, materials or workmanship; or

(b) Not in accordance with the Contract or any specifications incorporated in the Contract by written agreement; or

(c) Having been installed, operated, stored and maintained in accordance with the written instructions of the Contractor, fails to function properly or fails to meet any performance guarantees or specifications published by the Contractor as applicable to the Good(s);

then unless it is shown that the foregoing is caused solely by improper use or mishandling by the Authority, the Contractor shall, at its own expense (including transportation costs), at the written notification of the Authority, replace, rectify or completely repair the damaged or defective Good(s). The Contractor may, in lieu thereof, elect to replace the damaged or defective Good(s).

4.3 If any Service performed is found during the Warranty Period to be deficient, the Contractor shall at the written notification of the Authority, rectify the same, at the expense of the Contractor within t**hirty (30) days of receipt of the Authority's written notification or within such time as mutually agreed in writing between parties.**

5. PAYMENT

5.1 The Contractor must invoice the Authority in accordance with Clause 5.4 after receipt by the Authority of all the Goods and Services or upon the achievement of each payment milestone set out in the GeBIZ Specification Form whereby the Contractor must invoice the Authority for the amount set out against such payment milestone in accordance with Clause 5.3.

5.2 Subject to compliance with Clause 5, the Authority must pay the Contractor within thirty (30) days after the date of the invoice by any electronic payment mode as the Authority may decide (e.g. Interbank GIRO, PayNow, FAST transfer), or such other mode of payment as the Authority and the Contractor may agree. The Contractor must provide the Authority with the relevant payment details for such mode of payment within thirty (30) days after the date of the Letter of Acceptance.

5.3 No payment shall be considered as evidence of the quality of the Goods or Services to which such payments relate or a waiver of any default on the part of the Contractor in the performance of its obligations, nor shall it relieve the Contractor from its other obligations under the Contract.

5.4 If requested by the Authority, the Contractor must submit to the Authority invoices through InvoiceNow (strongly recommended) or the electronic invoicing system maintained by the Authority and such other documents through such means and format as may be specified by the Authority for the purposes of making payment.

5.5 The Authority shall not be required to pay for expenses or cost of whatever nature other than those expressly set out in the Contract or otherwise expressly agreed to in writing by the Authority.

5.6 The Contract Price is exclusive of any GST chargeable on the provision of goods and services to the Authority by the Contractor under the Contract. If the Contractor is a taxable person under the GST Act, the Authority must reimburse the Contractor for any GST chargeable by the Contractor on the provision by the Contractor of goods or services under the Contract.

5.7 Any invoice or other request for payment of monies due to the Contractor under the Contract must, if it is a taxable person for the purpose of the GST Act, be in the same form and contain the same information as if it were a tax invoice for the purposes of any subsidiary legislation made under the GST Act.

5.8 The Authority is agreeable to the Contractor assigning its Receivables to any Factor, subject to the following:

(a) the Contractor warrants and represents to the Authority that it has not previously assigned such Receivable to any person other than the Payee of such Receivable;

(b) the Contractor must provide to the Authority any information in relation to the Payee and the factoring arrangement as the Authority may from time to time reasonably require;

(c) such assignment shall be without prejudice to the Authority's rights against the Contractor under the Contract, at law or in equity, including the Authority's rights of deduction and set-off;

(d) the Contractor must ensure that:

i. each of its invoices for assigned Receivables (each, a "**Factored Invoice**") indicate a Factor as the Payee;

ii. it does not issue any Factored Invoice indicating a person that is not a Factor as the Payee;

iii. where any Factored Invoice is in respect of goods or services on which GST is chargeable by the Contractor, the Payee is indicated as the payee of the entire amount (including GST) of such Factored Invoice, unless the Authority agrees otherwise in writing; and

iv. where payment of the Receivable to the Factor is subject to withholding tax under Singapore law, the Contractor must give prior written notice of this to the Authority and comply with all reasonable invoicing directions of the Authority in connection with such withholding;

(e) the Contractor acknowledges and agrees that:

i. the Authority shall not be required to verify whether:

A. payment of any Factored Invoice to the Payee is in accordance with a valid factoring arrangement; or

B. the Contractor has complied with Clause (d);

ii. payment made by the Authority to the Payee in respect of any Factored Invoice shall constitute a full discharge of the Authority's payment obligations to the Contractor in respect of such Factored Invoice;

iii. where a Factored Invoice includes GST, payment made by the Authority to the Payee in respect of such GST shall constitute a full discharge of the Authority's payment obligations to the Contractor in respect of such GST;

iv. if the Contractor issues a Factored Invoice which indicates a Payee that is not a Factor, the Authority shall have the right to reject such invoice and require the Contractor to reissue such invoice indicating either the Contractor or a Factor as the Payee; and

v. in the event withholding taxes are imposed by the tax authorities on any payment made pursuant to a Factored Invoice and such withholding taxes have not already been withheld by the Authority by way of deduction without any obligation to gross up, the Contractor must indemnify and hold the Authority harmless from and against all such withholding taxes and any other Losses incurred or suffered by the Authority arising in connection with such withholding tax;

(f) the Contractor must ensure that all its invoices that are not factored do not indicate a Factor as the Payee. If the Contractor indicates the Factor as the Payee in any invoice that is not factored, payment made by the Authority to the Payee in respect of such invoice shall constitute a full discharge of the Authority's payment obligations to the Contractor in respect of such invoice; and

(g) the Authority shall have the right at any time (whether before or after receiving a Factored Invoice) to withdraw its consent to any factoring arrangement by giving notice to the Contractor and the Factor, and upon such withdrawal of consent:

i. the Authority shall be entitled to pay all Receivables to the Contractor without being liable to the Contractor or the Factor for any Losses; and

ii. the Contractor must reissue any Factored Invoice if required by the Authority.

6. RIGHTS OF THIRD PARTIES

6.1 A person who is not a party to this Contract shall have no right under the Contracts (Rights of Third Parties) Act to enforce any of its terms.

7. SUB-CONTRACTING AND ASSIGNING

7.1 The Contractor shall not sub-contract or assign the Contract without the prior written consent of the Authority.

8. SUSPENSION OR TERMINATION

8.1 The Authority shall, after giving seven (7) days prior written notice to the Contractor, have the right to suspend or terminate the Contract if the Authority is affected by any state of war, Act of God or other circumstances seriously disrupting public safety, peace or good order of the Republic of Singapore. Neither party shall be liable to the other by reason of such suspension or termination save that the Authority shall pay the Contractor the price of the Goods delivered and accepted by the Authority as at the date of written notice of termination or suspension. The Authority shall have title to such Goods delivered and accepted. The Contractor shall refund the balance of any payments or deposits made after deducting any outstanding sums owing by the Authority to the Contractor by reason of this Clause.

9. GIFTS, INDUCEMENTS AND REWARDS

9.1 The Authority may terminate the Contract and recover from the Contractor the amount of any loss resulting from such termination, if the Contractor shall have offered or given or agreed to give to any person any gift or consideration of any kind as an inducement or reward for doing or forbearing to do or for having done or forborne to do any action in relation to the obtaining or execution of the Contract with the Authority or for showing or forbearing to show favour to any person in relation to any Contract with the Authority, or if the like acts shall have been done by any person employed by the Contractor or acting on his behalf (whether with or without the knowledge of the Contractor) or if in relation to any Contract with the Authority the Contractor or any person employed by him or acting on his behalf shall have committed any offence under Chapter IX of the Penal Code or Prevention of Corruption Act or shall have abetted or attempted to commit such an offence or shall have given any fee or reward the receipt of which is an offence under Chapter IX of the Penal Code or the Prevention of Corruption Act.

10. VARIATION

10.1 No variation whether oral or otherwise in the terms of this Contract shall apply thereto unless such variation shall have first been expressly accepted in writing by the Contractor and the authorised contract signatory of the Authority.

11. APPLICABLE LAW

11.1 The Contract shall be subject to, governed by and interpreted in accordance with the Laws of the Republic of Singapore for every purpose.

11.2 For the avoidance of doubt, until the Authority issues a Letter of Acceptance, an Order message, or Purchase Order, this document (i) is not a contract and shall in no way be construed as creating any legally binding obligation to purchase any Goods and/or Service from any Supplier; and (ii) shall not be construed as providing or implying that a contract will be entered into with any supplier.

12. USAGE OF SOFTWARE

12.1 The on-site contractor shall use only legally acquired software that is authorised by the Polytechnic. Ngee Ann Polytechnic has a right to review the software installed on the contractor's computers. Suppliers with unauthorised software use it at their own risk.

13. DELAY IN SUPPLY AND DELIVERY / PERFORMANCE

13.1 If the Contractor fails to deliver any item of Goods / complete the performance of the Services by the date specified in the Contract, the Polytechnic shall have the right to cancel all or any such items of Goods / Services from the Contract without compensation and obtain them from other sources and all increased costs thereby incurred shall be deducted from any monies due or to become due to the Contractor or shall be recoverable as damages.

The recovery of such increased costs shall be limited to the quantity of such Goods as is purchased or obtained, not exceeding the quantity / scope stated in the Contract, from other sources after the Supplier's failure as aforesaid but within three months of the expiry of the Contract.

14. COMPLIANCE WITH PROGRESSIVE WAGE MARK REQUIREMENTS

The Contractor shall take note of the compliance with Progressive Wage Mark requirements stated here. The Contractor is to complete the Declaration on the Progressive Wage (PW) Mark Eligibility Form in Appendix 1 (below).

14.1 Subject to Clauses 14.2 and 14.3, throughout the duration of the Contract, a Contractor who is PW Mark-Eligible must:

(a) maintain a valid Progressive Wage Mark or Progressive Wage Mark Plus issued by the relevant authority (individually and collectively, “PW Mark”); and

(b) notify the Authority of any change to the PW Mark accreditation status of the Contractor within one month after the change.

14.2 If at the time of issuance of the Letter of Acceptance, the Contractor who is PW Mark-Eligible has neither obtained nor applied for the PW Mark, the Authority shall have the right to exempt the Contractor from compliance with Clause (a) for such period of time as determined by the Authority.

14.3 If at the time of issuance of the Letter of Acceptance, the Contractor who is PW Mark-Eligible has applied for but has yet to successfully obtain the PW Mark, the Contractor must:

(a) be exempted from compliance with Clause (a) during the period where the initial application for the PW Mark is being processed by the relevant authority. The Authority may extend the period of exemption by one or more consecutive periods as determined by the Authority; and

(b) notify the Authority of the outcome of the Contractor's application(s) for the PW Mark within one month after the date of receipt of the outcome of the application, and provide the Authority with the e-Certificate as proof of the successful application (if any).

14.4 If a Contractor who is not initially PW Mark-Eligible becomes PW Mark-Eligible at any point in time during the period of the Contract, the Contractor must comply with all the following:

(a) notify the Authority on its eligibility for the PW Mark within one month after the first day of employment of the relevant Local Resident Worker(s) covered by the Sectoral Progressive Wages and/or Occupational Progressive Wages;

(b) apply for a PW Mark by the end of the third month of employment of the relevant Local Resident Worker(s) referred to in Clause (a);

(c) provide the Authority with proof of its application for a PW Mark within one month after the date of submission of the application;

(d) notify the Authority of the outcome of the Contractor's application for a PW Mark within one month after the date of receipt of the outcome of the application, and provide the Authority with the e-Certificate as proof of the successful application (if any); and

(e) maintain a valid PW Mark for the remaining duration of the Contract.

14.5 The Authority shall have the right to terminate the Contract by giving two months' prior written notice to the Contractor if the Contractor fails to comply with any of the provisions in Clauses **Error! Reference source not found.**, (b) or 14.4.

14.6 For the purposes of this Clause 14, unless the context otherwise requires:

"PW Mark-Eligible" in relation to an employer, means an employer who is eligible to apply for a Progressive Wage Mark or Progressive Wage Mark Plus as the employer employs at least a Local Resident Worker covered by the prevailing Sectoral Progressive Wages or Occupational Progressive Wages.

"Local Resident Worker" means an employee who is a Singapore Citizen or Permanent Resident.

"Sectoral Progressive Wages" mean the progressive wage structure implemented for specified sectors under the Progressive Wage Model.

"Occupational Progressive Wages" mean the progressive wage structure implemented for specified occupations under the Progressive Wage Model.

Appendix 1

DECLARATION ON PROGRESSIVE WAGE (PW) MARK ELIGIBILITY

1. My firm _____, _____
<entity's name> <UEN>

hereby declares that my firm has:

a. read the information on the Sectoral Progressive Wages ("**SPW**") and Occupational Progressive Wages ("**OPW**") under the Progressive Wage Model as published on MOM's website (at Progressive Wage Model and its related pages) on the wage schedules and job descriptions on the covered sectors and occupations; and

b. assessed whether my employees (who are Singapore Citizens or Permanent Residents) are covered under the prevailing SPW and OPW.

2. My firm hereby provides information on the employees covered by paragraph 1 above in the following table:

Sector	**For each of the sectors shown below, to indicate:** - **"Yes" if the firm employs any Singapore Citizen or Permanent Resident; or** - **"No" if the firm does not employ any Singapore Citizen or Permanent Resident.**
Cleaning (including in-house cleaners)	*[Yes / No]*
Security (including in-house security officers)	*[Yes / No]*
Landscape (including in-house landscape maintenance employees)	*[Yes / No]*
Lift and Escalator	*[Yes / No]*
Retail	*[Yes / No]*
Food Services	*[Yes / No]*
Waste Management*	*[Yes / No]*
Occupation	**For each of the occupations shown below, to indicate:** - **"Yes" if the firm employs any Singapore Citizen or Permanent Resident; or** - **"No" if the firm does not employ any Singapore Citizen or Permanent Resident.**
Administrators (i.e. administrative assistants, administrative executives, administrative supervisors)	*[Yes / No]*
Drivers (i.e. general drivers, specialised drivers)	*[Yes / No]*

** with effect from 1 Jul 2023.*

3. I understand that if my firm has declared 'Yes' for any of the sector(s) or occupation(s) listed above, my firm is eligible for the PW Mark.

[Please indicate the follow up actions by your firm below.]

☐ My firm has applied for the PW Mark accreditation and hereby attach a copy of my firm's PW Mark e-Certificate (or proof of application submission for PW Mark accreditation).

☐ My firm hereby undertakes to apply for the PW Mark accreditation and submit proof of application submission for PW Mark accreditation to Ngee Ann Polytechnic upon request.

Submitted by: _____

Name of representative: _____

Designation of representative: _____
<ideally same representative who signed the Tender Offer>

Signature: _____
<Signature or e-Signature>

Date: _____

C. LIST OF CONTACT AND GUIDE ON HOW TO QUOTE IN GEBIZ

Service Desk:	**(65) 6482 7121 (Hotline)**
Technical Enquiries:	**support@gebiz.gov.sg**
Billing Enquiries:	**billing@gebiz.gov.sg**
Mailing Address:	**GeBIZ Service Centre** **1 Depot Road** **Defence Technology Tower A** **Singapore 109679**
Opening Hours:	**Mon - Fri: 8:30 a.m. to 6:00 p.m.** **Closed on Sat, Sun and Public Holidays** **Eve of New Year's Day, Chinese New Year, and Christmas Day: 8:30 a.m. to 1:00 p.m.**

Or you could refer to the website for the guide:

https://www.gebiz.gov.sg/cmw/content/getstart.html

D. E-INVOICING

Suppliers providing goods & services to Ngee Ann Polytechnic shall bill using e-invoices. Suppliers currently not on e-invoicing can register at https://app.vendors.gov.sg/. Suppliers can also download the Vendors@gov app on GooglePlay or Apple App Store.